

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: StaceyAnn McFarlane-Ross	Team: Squad #01	CCRB Case #: 201901124	☒ Force ☐ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☒ Injury
Incident Date(s) Wednesday, 01/30/2019 2:20 AM	Location of Incident: Outside of 136 West 3rd Street	18 Mo. SOL 3/16/2021	Precinct: 06
Date/Time CV Reported Wed, 01/30/2019 3:07 AM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Wed, 02/06/2019 11:07 AM

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. SGT Joseph Algerio	4775	944312	006 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Matthew Baqueriz	15850	957354	006 PCT
2. POM Michael Gambina	05499	963528	006 PCT
3. POM Deniz Saglam	07305	957119	006 PCT
4. POF Jennifer Driscoll	07407	958524	006 PCT
5. POM Charles Odekirk	16182	957916	006 PCT
6. POF Corinna Gomez	09881	951775	006 PCT
7. POM Nicholas Groth	23306	952813	006 PCT
8. SGT Cory Green	29631	950531	006 PCT

Officer(s)	Allegation	Investigator Recommendation
A . SGT Joseph Algerio	Abuse: Sergeant Joseph Algerio stopped § 87(2)(b)	A . Exonerated
B . SGT Joseph Algerio	Force: Sergeant Joseph Algerio used physical force against § 87(2)(b)	B . Exonerated
C . SGT Joseph Algerio	Abuse: Sergeant Joseph Algerio damaged § 87(2)(b)s property.	C . Unsubstantiated

Case Summary

On January 30, 2019, Sergeant Joseph Algerio, from the 6th Precinct, filed this complaint on behalf of § 87(2)(b) Verner, via telephone with the NYPD Internal Affairs Bureau, generating log number 2019-4276. On February 6, 2019, the complaint was referred to the CCRB.

On January 30, 2019, at approximately 2:22 am, Sgt. Joseph Algerio, and PO Michael Baqueriz, of the 6th Precinct, stopped § 87(2)(b) outside of 136 West 3rd Street in Manhattan, based on a probable cause warrant (**Allegation A: Abuse of Authority, Exonerated**). As Sgt. Algerio and PO Baqueriz approached § 87(2)(b) Sgt. Algerio pushed § 87(2)(b) against the wall and instructed him to put his hands behind his back. § 87(2)(b) did not comply. Sgt. Algerio grabbed § 87(2)(b) from behind and pushed him to his stomach and stomped on his face (**Allegation B: Force, Exonerated**). § 87(2)(b) was eventually handcuffed. During the scuffle, Sgt. Algerio called for backup and several officers, including, PO Cory Green, PO Nicholas Groth, PO Jennifer Driscoll, PO Corinna Gomez, PO Deniz Saglam, PO Michael Gambina and PO Charles Odekirk responded to the scene. Sgt. Algerio and PO Baqueriz picked § 87(2)(b) up from the ground. § 87(2)(b)'s jacket was ripped by the shoulder (**Allegation C: Abuse of Authority, Unsubstantiated**).

During the investigation, BWC footage from Sgt. Algerio, PO Baqueriz, PO Green, PO Groth, PO Driscoll, PO Gomez, PO Saglam, PO Gambina and PO Odekirk were obtained, which captured the incident (Board Review 04, 05, 07, 08, 09, 10, 11, 12, 13).

Findings and Recommendations

Allegation (A) Abuse of Authority: Sergeant Joseph Algerio stopped § 87(2)(b)

§ 87(2)(b) (Board Review 03) testified that he stood outside in front of McDonalds he observed Sgt. Algerio and PO Baqueriz walking across the street towards him. Sgt. Algerio asked § 87(2)(b) for his name and § 87(2)(b) verbally provided it. Immediately after § 87(2)(b) said his name, Sgt. Algerio and PO Baqueriz took hold of § 87(2)(b)'s hands and put them behind him to handcuff him. § 87(2)(b) asked Sgt. Algerio and PO Baqueriz what was going on and Sgt. Algerio told § 87(2)(b) that he had a warrant.

Sgt. Algerio (Board Review 01, 14) testified that the detective bureau sent a probable cause to arrest wanted poster to the precinct (Board Review 02), which he viewed via his department cell phone after observing § 87(2)(b) standing alone in front of McDonalds, but prior to stopping him. Sgt. Algerio's BWC captured § 87(2)(b)'s wanted information on his phone prior to the stop (Board Review 22). § 87(2)(b) was wanted for grand larceny, and Sgt. Algerio recognized his name from a previous arrest. Sgt. Algerio observed § 87(2)(b) exit the McDonalds, which was the same place he allegedly committed the grand larceny. Sgt. Algerio told PO Baqueriz that he saw § 87(2)(b) and decided to stop him as he was the supervisor.

PO Baqueriz (Board Review 06) testified that Sgt. Algerio decided to stop § 87(2)(b). As they approached § 87(2)(b) who stood in front of the McDonalds, Sgt. Algerio said, § 87(2)(b) "You have a warrant."

According to People v. DeBour, 40 N.Y.2D 210 (1976), an officer may stop, detain, and question an individual if he or she had reasonable suspicion that the individual has committed, is committing, or is about to commit a crime (Board Review 17).

§ 87(2)(g)

Therefore, it is recommended that **Allegation A** be closed as **Exonerated**.

Allegation (B) Force: Sergeant Joseph Algerio used physical force against § 87(2)(b)

§ 87(2)(b) testified that as he continued to ask Sgt. Algerio and PO Baqueriz what the warrant was for, Sgt. Algerio shoved him to the ground and he landed on his chest and hit his face. Neither Sgt. Algerio or PO Baqueriz told him what the warrant was for. As he was on the ground, PO Baqueriz tried to rear-cuff him but could not. Sgt. Algerio and PO Baqueriz instructed him to stop resisting though § 87(2)(b) stated that he was not doing anything with his arms or his body. Sgt. Algerio subsequently stomped on the left side of his face, causing his head to hit the concrete and resulting in a bruise to his face and soreness to his neck.

§ 87(2)(b)'s medical records (See Privileged Documents) noted that § 87(2)(b) complained of facial, neck and wrist pain. § 87(2)(b) initially reported that his face was stomped on the concrete. He later reported that he was pushed to the ground and slammed his face, sustaining an abrasion to the right side of his face. § 87(2)(b)'s injury photos, documented in the TRI reports, shows a small abrasion to his right temple and a slightly larger abrasion to his right cheek (Board Review 21). There is no apparent redness, swelling, or bruising in the TRI photos showing the right side of § 87(2)(b)'s face or his arrest photo which shows the left side of his face (Board Review 20).

Sgt. Algerio testified that he instructed § 87(2)(b) to put his hands behind his back multiple times but § 87(2)(b) refused. He grabbed § 87(2)(b)'s hand but § 87(2)(b) withdrew his hand from Sgt. Algerio. Sgt. Algerio pushed § 87(2)(b) against the wall, and § 87(2)(b) tensed his body, and pushed past Sgt. Algerio. As § 87(2)(b)'s back was facing Sgt. Algerio, Sgt. Algerio grabbed § 87(2)(b) from behind and pushed him to the ground. § 87(2)(b) landed on his stomach, with one of his hands under his body. Sgt. Algerio pulled § 87(2)(b)'s hand from under his body. He did not stomp on § 87(2)(b)'s head.

Sgt. Algerio's TRI noted that he used hand strikes and a forcible takedown against § 87(2)(b) resulting in minor lacerations/abrasion (Board Review 23). In Sgt. Algerio's BWC, he and PO Baqueriz tell § 87(2)(b) at least seven times to put his hands behind his back and multiple times that he has a warrant. At 07:20:05 whilst telling § 87(2)(b) to put his hand behind his back after § 87(2)(b) is on the ground, Sgt. Algerio thrusts the palm of hand into § 87(2)(b)'s head two times. No one is seen stomping on § 87(2)(b). § 87(2)(b) is subsequently handcuffed and assisted off the ground (Board Review 04).

PO Baqueriz testified that he and Sgt. Algerio instructed § 87(2)(b) multiple times to put his hands behind his back. § 87(2)(b) did not comply, but repeatedly said that he did not have a warrant and that he did his time. Sgt. Algerio pushed § 87(2)(b) against the wall and pushed him

to the ground. § 87(2)(b) was actively resisting once he was on the ground, by tensing the arm that was under his body. Sgt. Algerio pulled § 87(2)(b)'s hand out from under his body but PO Baqueriz did not see how Sgt. Algerio accomplished this.

PO Baqueriz' BWC (Board Review 05) shows an inaccurate time stamp. At 07:19:34, PO Baqueriz and Sgt. Algerio approach § 87(2)(b) and Sgt. Algerio pushes § 87(2)(b) against the wall. Once the audio is activated, one of the officers says, "hands behind your back." § 87(2)(b) asks what he was being arrested for and PO Baqueriz told him, "You have a warrant." § 87(2)(b) then walks towards the McDonalds and one officer says, "Put your hands behind your back." At the same time, § 87(2)(b) is pulled from behind and thrown to the ground, landing on his stomach. § 87(2)(b) continues to tell the officers that he has no warrant. The video does not show any officer stomping on § 87(2)(b)'s head.

As per Patrol Guide Procedure 221-01, officers are to use reasonable force as is necessary to gain control of a subject (Board Review 16).

§ 87(2)(g) [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] It is therefore recommended that **Allegation B** be closed as **Exonerated**.

Allegation (C) Abuse of Authority: Sergeant Joseph Algerio damaged § 87(2)(b) s
property.

§ 87(2)(b) testified that the Helly Hensen jacket he was wearing ripped in the left shoulder when he was thrown to the ground. § 87(2)(b) stated that his jacket cost \$800 dollars.

Sgt. Algerio initially testified that he did not see a rip in § 87(2)(b)'s jacket. He later clarified after reviewing his BWC, that he observed that § 87(2)(b)'s jacket was ripped. However, he did not have an independent recollection of the jacket being ripped or how it was ripped.

PO Baqueriz testified that he did not independently recall seeing § 87(2)(b)'s jacket rip. He saw the ripped jacket after reviewing his BWC. He did not know how § 87(2)(b)'s jacket was ripped.

PO Baqueriz's BWC shows at 07:19:34, § 87(2)(b) was approached by Sgt. Algerio and PO Baqueriz, and his jacket appears to be in order. At 07:20:40, § 87(2)(b) is picked from the ground and his jacket has a rip in his left shoulder.

According to the NYPD Patrol Guide Procedure 200-02, one of the NYPD's core values is a pledge to protect the lives and property of citizens (Board Review 18).

§ 87(2)(g)

Therefore, it is recommended that **Allegation C** be closed as **Unsubstantiated**.

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been a party (Board Review 19).
- Sgt. Joseph Algerio has been a member of service for 12 years and has been a subject in 12 CCRB complaints and 18 allegations, none of which were substantiated. § 87(2)(g)

Mediation, Civil and Criminal Histories

- This complaint was not suitable for mediation.
- A notice of claim inquiry for § 87(2)(b) was sent to the Office of the New York City Comptroller and will be added to the case file upon receipt.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Squad No.: 1

Investigator: _____
Signature Print Title & Name Date

Squad Leader: _____
Signature Print Title & Name Date

Reviewer: _____
Signature Print Title & Name Date